

24STCV16051 24STCV16051

County: los-angeles

Division: Civil Law and Motion

Department: 516

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Case Number: 24STCV16051 Hearing Date: June 30, 2026 Dept: 516

Judge James I. Montgomery

Department 516

Hearing Date: June

30, 2026

Case Name: Waters, et al. v. Lah-Glen,

LLC

Case

No.: 24STCV16051

Matter: Hearing on Motion for Leave to Amend Motion for

Leave to File Second Amended Complaint

Moving Party: Plaintiffs

Bryant Waters, et al.

Responding Party: Defendant Lah-Glen, LLC

Tentative

Ruling: Plaintiffs Bryant Waters,

et al.'s motion for leave to file a Second Amended Complaint is granted.

Plaintiffs

Bryant J. Waters, Patrick B. Mays, Cheng Tzu Lai, Jimmy W. Green, Sue E.

Devine, Jonathan Esterhazy, Guillermo Roditi Dominguez, Trustee of The GRD

Revocable Trust, dated March 27, 2019, Robert Joseph Palleschi and Terri Lynn

Palleschi, Trustees, or Their Successors in Interest, of The Robert and Terri

Palleschi Living Trust dated May 25, 2018, and any amendments thereto

(collectively "Plaintiffs") filed this

action against Defendant Lah-Glen, LLC ("Defendant") a terminated California

limited liability company, and Does 1 through 1,000. The First Amended

Complaint ("FAC") alleges one cause of action for violations of building

standards for original construction pursuant to California Civil Code sections

896 et seq and 897.

Plaintiffs move

for leave of Court to file a Second Amended Complaint ("SAC"). Defendant

opposes.

Legal Standard

The court

may, in furtherance of justice, allow a party to amend any pleading upon any

terms as may be proper. (Code Civ. Proc., §§ 473, subd. (a),

576.) Courts liberally grant leave to amend based on a

strong policy favoring the resolution of all disputes between parties in the

same case. (Nestle v. Santa Monica (1972) 6 Cal.3d 920,

939; Morgan v. Superior Court (1959) 172 Cal.App.2d 527, 530.)

Thus, requests for leave to amend will generally be granted unless the party

seeking to amend has been dilatory in bringing the proposed amendment, and the

delay will cause prejudice to the opposing party if leave to amend is granted. (Hirsa v.

Superior Court (1981) 118 Cal.App.3d 486, 490; see also Armenta

ex rel. City of Burbank (2006) 142 Cal.App.4th 636, 642 ["instances

justifying the court's denial of leave to amend are rare."].) Absent

prejudice, delay alone is insufficient to deny leave to amend. (Higgins

v. Del Faro (1981) 123 Cal.App.3d 558, 564-565.)

A party

requesting leave to amend must state what allegations in

the previous pleading are proposed to be deleted and added,

as well as specify where, by page, paragraph, and line number, the changes are

located. (Cal. Rules of Court, rule

3.1324(a)(1)-(3).) The moving

party must also attach the proposed amended

pleading with a declaration by counsel, describing (1) the effect of the amendment; (2) why the amendment is necessary and proper; (3) when the facts giving rise to the amended allegations were discovered; and (4) why the request was not made earlier. (Cal. Rules of Court, rule 3.1324(b)(1)-(4).)

Request for Judicial Notice

Defendant

requests that the Court take judicial notice of six exhibits. The Court declines to take judicial notice of the six documents because it is unclear what they are supposed to be or where they were acquired. Thus, as presented to the Court, the Court is unable to take judicial notice of the exhibits pursuant to Evidence Code section 452.

Analysis

Plaintiffs have complied with the Rules of Court. Plaintiffs attached the proposed SAC as Exhibit 1. (See Liberation Decl., Ex. 4.)

Plaintiffs

seek leave to amend to correct a typographical error in Civil Code section 911, subdivisions (a) and (b), to Civil Code section 936, and to name TNT Building Corporation doing business as TNT Simmonds ("TNT") as a defendant to their

action.

Plaintiffs argue

that leave to amend is warranted because the cause of action will not change

their claims or prejudice Defendant. Plaintiffs contend that they learned of

TNT's involvement in the events that led to their claims on December 5, 2025.

(Libertino Decl., ¶ 5.) Moreover, no discovery has been conducted in this

action, and the case is in the early stages. (Libertino Decl., ¶ 7.) Plaintiffs

assert leave to amend is necessary and proper because the SAC arises out of the

same transactions, occurrences, and subject matter of the operative complaint,

the motion is brought in good faith, granting leave to amend will promote the

efficient resolution of all claims, and denial will result in irreparable harm

to Plaintiffs. (Libertino Decl., ¶ 8(b).) Defendant disputes leave to amend

because Plaintiffs' delay in seeking leave to amend is unreasonable and

unwarranted. The Court is not persuaded by Defendant's argument. Defendant

relies on the exhibits of which the Court denied taking judicial notice.

Thus, Plaintiffs

will be permitted to file the SAC.

Conclusion

Plaintiffs

Bryant Waters, et al.'s motion for leave to file a Second Amended Complaint is

granted.

Plaintiff must

file the SAC within five (5) calendar days of this ruling.